

Compounding fee under Clause 152 not refundable as double deposit

Allahabad High Court · Division Bench · 16 September 2015 · Writ-C No. 53178 of 2015 · Writ-C No. 53178 of 2015 · **Writ dismissed; compounding fee under cl. 152 not refundable.**

HEADNOTE

A consumer who deposited both compounding fee (Rs 12,000) and assessed charges (Rs 76,091) for alleged electricity theft—the offence having been compounded under Clause 152 of the Electricity Supply Code, 2005—sought refund of the compounding fee as a double deposit. A prior writ had relegated her to the Executive Engineer, who held the sum was compounding of the theft charge and not returnable. The Division Bench declined interference and dismissed the writ.

FACTUAL SUMMARY

The petitioner, Ruchi Agrawal, was supplied electricity at her premises. On 07.07.2014 she deposited Rs 12,000 as compounding fee for alleged theft and, the same day, Rs 76,091 as the assessed amount; the offence was compounded under Clause 152 of the Electricity Supply Code, 2005. Claiming the compounding fee was a double deposit, she first obtained an order in Writ Petition No. 42324 of 2014 relegating her to the Executive Engineer. The Engineer refused refund, holding the sum was compounding of the theft charge, and she challenged that order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::152

compounding fee — refund after compounding of theft

HOLDING

Where compounding fee under Clause 152 of the Electricity Supply Code, 2005 has been deposited and the alleged theft stands compounded, and the assessed amount has also been paid, the compounding fee is not a double deposit and is not refundable. The Executive Engineer's refusal to return that sum warrants no interference. ¶ 1

FLAG Order cites Clause 152 of the Electricity Supply Code, 2005 as the compounding power; s.152 EA 2003 is the statutory compounding provision. Recorded as cited, not corrected.

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy A consumer who deposited both compounding fee (Rs 12,000) and assessed charges (Rs 76,091) for alleged electricity theft—the offence having been compounded under Clause 152 of the Electricity Supply Code, 2005—sought refund of the compounding fee as a double deposit.. ¶ 1